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U.S. REASSURES CHINA HER CHINA-POLICY UNCHANGED

Washington, Oct. 8 (CNA-UPI): The State Department said tonight it has reassured Nationalist China that American policy toward Chiang Kai-shek's Government is unchanged despite the fact that the United States does not regard Taiwan as a "country."

The reassurance was given Chinese Minister H.C. Hsu when he called at the department to ask about a federal judge's ruling that the United States could not deport Chinese aliens to Taiwan against their will because the American Government did not consider Taiwan a part of China under international law.

State Department spokesman Joseph W. Reap said he was told, when he made "informal inquiry" yesterday, that "this case involved interpretation of a domestic statute and in no way affected our policy with respect to China."

Hsu met with Edwin W. Martin, head of the department's Office of Chinese Affairs.

Reap acknowledged that the United States does not consider Taiwan a "country." He said "we regard it as a territory lawfully and rightfully under thecontrol administration and authority of the Government of the Republic of China."

The federal ruling, handed down last Tuesday by District Judge Aldxanjac Holtzhoff, was that the government could not deport two former fliers for the Chinese Nationalist forces, Cheng Fu-sheng and Lin Fu-mei, to Taiwan because the immigration and Naturalization Act of 1952 required that they be sent back to the "country" from which they came or to any other "country" that would take them.

The judge ruled that the State Department did not consider Taiwan a "country" or technically part of China.

The State Department tonight confirmed Holtzhoff's interpretation of the State Department position.

Taiwan seized from China by Japan many years ago, was returned to China's control in 1945 as a result of the decisions taken at the Cairo and Potsdam Conferences. However, the status of Taiwan remains unsettled in a final legal sense because there has been no formal treaty or agreement sanctifying the Nationalist Government's control of the island.

For that reason, the State Department cannot designate it as a country, or part of a country.

However, Reap said, the United States does not consider Chiang's Government a "government in exile."
